MUTASA MINING SYNDICATE
versus
WAN WENJIN JEWELLERS (Private) Limited
and
PROVINCIAL MINING DIRECTOR MANICALAND N.O
and
MINISTER FOR MINES AND MINING DEVELOPMENT

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE, 12 February 2026

Opposed Application

L N Dzumbunu, for the applicants
T L Mapuranga, for the 1st respondent
P Chibanda, for the 2nd and 3rd respondent

CHITAPI J: The parties are as cited in the heading above. The applicant seeks rescission of judgment granted in case No HC 1068/25 in which it was not a party. The parties in case No HC 1068/25 were as follows:

Wan Wenjan Jewellers (Pvt) Ltd – applicant

The Provincial Mining Director- first respondent

Minister of Mines and Mining Development – second respondent

The applicant in that case (first respondent herein) which was an urgent chamber application sought a stay of the decision of the first and second respondents (second and third respondents herein) to cancel six(6) certificates of registration Nos G6822-G6827 relating to mining claims respectively called Odzanai 14,15,6,7,9,and 10. The certificates were registered in the name of the first respondent herein. The reason for their cancellation according to a notice of intention to cancel dated 20 August 2024 penned by the second respondent was that the claims were situated on ground not open to prospecting in violation of s 31 of the Mines and Minerals

Act [*Chapter 21.05*]. The mining locations were said to fall within a demarcated forest area called Stapleford Forest in violation of The Forest Act [*Chapter 19.05*]. The letter advised the first respondent herein of its right to appeal to the second respondent.

The first respondent also ordered a stoppage of mining and related operations taking place thereat. The first respondent was ordered to remove its mining equipment from the prohibited location with immediate effect. The third respondent dismissed an appeal by the respondent against the decision of the second respondent and cancelled the registration certificates aforesaid.

The first respondent filed an application for review of the third respondent's decision to cancel the certificates aforesaid. The review application is pending under Case No. HC 1002/25 which was filed on 5 March, 2025. The application was determined by MUCHAWA J on 13 March, 2025. The learned judge issued an order suspending the third respondent's decision to cancel the certificates of registration pending the determination of the filed review application aforesaid. She restored the *status quo* before the cancellation of the certificates. It seems that the order was granted in default of the first and second respondents.

The applicant seeks a rescission of the decision of MUCHAWA J aforesaid. It purports to make such application in terms of rule 29(1)(a) of the court's rules 2021. The basis for seeking the rescission is that the order was erroneously sought and erroneously granted in the absence of an affected party. Rule 29 provides as follows:-

> "29(1) the court or a judge may, in addition to any other powers it or he may have, or its on-initiative or upon the application of any affected party, correct, rescind or vary –
> (a) An order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby, or
> (b) An order or judgment in which there is an ambiguity or a patent error or omission; or
> (c) An order or judgment granted as a result of a mistake common to the parties.
> (2) Any party desiring any relief under this rule may make a court application on notice to all parties whose interests may be affected by any variation sought within one month after becoming aware of the existence of the order or judgment.
> (3) The court or a judge shall not make any order correcting, rescinding or varying an order or judgment unless satisfied that all parties whose interests may be affected have notice of the order proposed."

The applicant avers that MUCHAWA J's order or judgment was erroneously granted in the applicants' absence as an interested party. Accordingly, the applicant seeks the rescission of the interim order aforesaid.

The applicant avers that it is the holder of a special grant which covers the area in which the claims in dispute are situate. In other words the applicant's position is that it is an interested party in the dispute and holds a superior right over the area of the claims and that had the court been aware of the superior title it would not have granted the interim order without its participation. I must note that the issue of the existence of the special grant was not placed before MUCHAWA J. As such, the learned judge cannot be accused of having errored because the special grant was not before her. Had it been placed before her and she say, inadvertently did not relate to it, the argument could have been different. In saying this I do not necessarily hold even in such situation that she could be said to have committed an error. The issue would have to be dealt with on its facts.

The applicant produced a copy of its special grant No. 10072 dated 5 March, 2025 and bearing the Ministry of Mines Development date stamp of 10 February 2025. The applicants' Special Grant was issued on 5 March 2025. It gives the applicant rights to mine gold in the area described therein as "50 hectares situated within Reserve Area RA MNC005 in the Mining District of Manicaland—". The applicant averred that its reserved area is the same area on which the first respondents claims which were cancelled by the first and second respondents were situate.

The applicant noted that the first respondent did not produce certificates of registration in the urgent application. On this issue I have taken note that the procedures for cancellation of mining titles imply that there were registrations in existence which had to be cancelled.

The first respondent opposed the application. It averred that it was not aware of the existence of the special grant at the time that it filed its review application. Pointedly though, the first respondent does not refute the existence and aunthenticity of the special grant. In terms of reference or the paper trial, the mining certificates and titles in issue were basically cancelled by the second respondent who conveyed the decision in a letter dated 4 February, 2025 and bearing the Ministry of Mines and Mining Development date stamp of 10 February, 2025. The

applicant's special grant was issued on 5 March, 2025. The application for review Case No. HCH 1002/25 was filed on the same date 5 March, 2025 Case No. 1068/25. The urgent application was filed on 7 March, 2025. The evidence of the special grant may well have been unknown to the first respondent. This does not remove its existence. It was in existence on the 7th March, 2025 when the urgent application was filed. MUCHAWA J did not know about it. She could not have committed an error when she granted the order. The case does not end there. The court must consider whether the order was erroneously sought. The issue that arises is whether an error ceases to be such where something is done oblivious to the existence of a fact or state of affairs be it a factual or legal issue or both which impact on the decision made by the court. I will return to his aspect later.

The first respondent issued points *in limine*. The first point issued in the opposing affidavit was that this application is incompetent because there is no provision in the law or rules for such an application. It was averred that seeking a rescission of an interim relief undermines the purpose for which it is issued which is to regulate the status of the subject matter of the dispute pending its resolution. This point *in limine* has no substance and should not detain the court. Rule 29 deals with rescission, correction and variation of court judgments and orders. It does not distinguish between final and interim judgments or orders. It is not contested that the court issued a provisional order. Any order or judgment may be interfered in the manner set out in rule 29. This application is therefore competent and properly before the court there being no contest on the authenticity or validity of the order in question.

The second point was that the applicant has no *locus standi*. The first ground for want of *locus standi* pleaded by the first respondent is that the applicant was not party to the proceedings which resulted in the granting of the order whose rescission the applicant seeks. Further it was pleaded that the issue brought on review had nothing to do with the applicant. It was pleaded further that the applicant did not have a legal interest in the dispute which concerned the cancellation of the first respondent's rights over the mining location in issue. It was averred that the applicant was not involved in the operations of the first respondent nor was it affected by them. In consequence, so the first respondent posited the applicant did not have any interest in the review. Further the first respondent, averred that until joined to the review application filed

by the first respondent the applicant did not have *locus standi* in the matter. The first respondent however conceded that the applicant had since filed a joinder application under Case No. HCH 2385/25 wherein the applicant seeks to be joined to the urgent application.

It is without doubt that the applicant's points *in limine* are not merited. Rule 29 exists to allow the court the latitude ordinarily closed to it by reason of the *functus officio* doctrine to revisit an order or judgment and to be able to correct, rescind or vary such order or judgment for reasons and in circumstances set out in the rule. With reference to this application where reliance is placed upon the ground that the provisional order was granted in error, the Supreme Court in the case *Munyimi* v *Tauro* 2013(2) ZLR 291 (s) defined "error" in the context of rule 449 of the rules, now rule 29 as follows:

> "As to what constitute an error," such an error would exist where the judge was unaware of facts which, if he had been aware of them would have made it highly unlikely that he would have found it permissible or competent to make an order against a party…."

It is my view that MUCHAWA J would most unlikely have granted the order in dispute in the absence of notification of the applicant of this application had the Learned Judge been aware of the fact that a Special Grant over the disputed area had been issued in terms of the law two days before this urgent application was filed. As I have already pointed out, MUCHAWA J did not make a error when she granted judgment on the papers. I do not speak to the corrections of the judgment herein. I cannot pronounce on that the issue. It is incompetent for me to do so. I however, note that r 29 exists to deal *inter-alia* with a situation where the established error arises because a fact(s) which was not placed before the Court is then noted after issue of the order or judgment is then granted. Pointedly though, this fact or circumstance which was not taken into account must have existed at the time of issue of the judgment and not after. I t must be conducive to materially impact on the judgment or order. It is the practice of this Court in terms of this rule to ensure that all interested parties with a legal interest in the matter are given notice of any application which impacts on their rights.

Rule 29(1) allows "any affected party", that is, a party affected by the judgment or order to make the application. This is the first step. The Court must be satisfied that the applicant is an affected party. The affected party must show that it has a legal interest in the order. The legal interest connotes that the party claiming to have a legal interest must show that it has a direct and

substantial interest in the right which is the subject matter of the litigation and that the legal interest could be prejudicially affected by the judgment. In *casu*, the applicant holds a Special Grant issued before the urgent application was filed. It is issued in terms of statute. It confers exclusive mining and other rights to the applicant over a specified area. It is not in dispute that the cancelled mining rights of the first respondent for which it seeks a review covered the same area covered by the Special Grant. The applicant is undoubtedly prejudiced by the order which excludes it from exercising the rights conferred by the Special Grant and for that reason the *locus standi* of the applicant was established.

With regard to whether a provisional order can be rescinded, varied or corrected in terms of r 29, no serious argument can be advanced to support the first respondent's contention that a provisional order cannot be varied, or revisited on the r 29 procedure. In argument, the first respondent argued that because the order is not final, it cannot be rescinded. It was submitted that such an order does not finalize the matter. A parallel was drawn with the appeal procedure wherein appeals can only be made against final orders or with leave if against non- final orders. Such argument shows a confusion because r 29 is clear in its non-distinction of whether the judgment or order referred to in that rule is final or not. With appeals s 43 of the High Court is clear that an appeal against an interlocutory judgment or order is only appealable with leave. It does not refer to matters of correction, variation and rescission of judgment or order is only appealable with leave. It does not refer to matters of correction, variation.and rescission of judgments and orders under rule 29. In fact, after the process in rule 29 has been done, a party may based on the final corrected, varied or rescinded judgment consider bringing the same corrected or varied order or judgment review or appeal in conformity with rules which govern such processes. In short rule 29 applies to judgments and orders made by the court or judge at any stage of proceedings including correcting, varying or setting aside the judgment. Where a correction is sought only the portion to be corrected is revisited. The provisional order itself states in the pre-amble that it can be changed or set aside at the instance of the parties to the order. Since any affected party may seek the rescission, variation, correction or setting aside of any order or judgment of the court, there can be no rationale reason to hold that an intervenor cannot petition the court to re-consider its order.

In *casu*, the provisional order operates against the applicant which holds a Special Grant over the area in dispute. There is little if any doubt that had MUCHAWA J's attention been drawn to the existence of the Special Grant in the name of the applicant, the learned judge would have properly considered its purport and impact on the claim brought by the first respondent and on the order which the learned judge eventually gave. A Special Grant is a lawfully issued instrument in terms of the Mines and Minerals Act. It confers rights on the holder. The holder is the one permitted to exploit the area covered by the special grant for the duration of time given therein. MUCHAWA J would certainly have taken cognisance of that. The provisional order must be revisited. The second and third respondents filed an affidavit in which they advised that the applicants Special Grant is the valid instrument in place regarding the status or ground situation of the area in dispute.

The challenge which arises is the appropriate order to grant. A setting aside of the order or judgment is a correct order to give. Its effect is to place the respondents in the position they were before the applicant came into the fray. The position before the provisional order was granted was that the first respondent's mining titles remained cancelled. They thus remain so. The first respondent has a pending review application and the applicant a joinder application. Common sense and logic would dictate that the parties concerned resolve amongst themselves the issues of joinder and how they can accelerate the disposal of the review applications. This is just a thinking cloud thought of linking aloud on my part and does not bind the parties.

The setting aside of MUCHAWA J's order leaves the Special Grant in place. It entitles the applicant to possess and exploit the area previously granted to the first respondent before cancellation of the titles. The cancellation is on challenge on review. If the applicant exploits the area and the court finds on review that the first respondent's titles were unlawfully cancelled, then it complicates the situation. The Special Grants' validity is indirectly under challenge as well in that its continued validity will depend on the result of the review.

An appropriate order in my view is one based upon the courts power to regulate its processes in the interests of justice and safeguarding people's rights and promoting order in the mining sector order. The order which pre-eminently presents itself as the best course is one in which there ought to be a cessation of mining by the first respondent pending the resolution of

the dispute over the mining area. The position now is that as an affected party the applicant must be heard before a pronouncement is made. The matter must be reopened so that the applicant participates in the urgent application.

In the result the following order is issued.

IT IS HEREBY ORDERED THAT:

1. The provisional order by MUCHAWA J dated 13 March, 2025 is hereby rescinded and set aside.
2. The applicant be joined as 3rd respondent in Case No. HC 1068/25.
3. The first respondent as applicant in Case No. HC 1065/25 shall serve the applicant with all the papers forming the record in that case within five (5) days of the date of this order.
4. The applicant shall within five (5) days after service of the record file and serve its opposing papers on all other parties.
5. The Registrar shall set down the matter for hearing within five (5) days of filing of the opposing papers by the applicant and the applicants' legal practitioners shall advise the Registrar of the order to set down the matter as directed in this order.
6. Pending the determination of the matter, the first respondent shall upon service of this order forthwith stop and suspend all mining activities on site by the first respondent or anyone claiming the right to do so through the first respondent and by the applicant if any and the Sheriff shall ensure the cessation of all mining activities on site.
7. The costs are reserved.

CHITAPI J:……..

Chasi Maguwudze Legal Practice, applicants' legal practitioners
Lawman Law Chambers, first respondents' legal practitioners
Civil Division of the Attorney General Office, second and third respondent legal practitioners